that reason wrong on straightforward utilitarian grounds. So although there are situations in which it is not wrong to kill animals, these situations are special ones, and do not cover very many of the billions of premature deaths humans inflict, year after year, on animals.

In any case, at the level of practical moral principles, it would be better to reject altogether the killing of animals for food, unless one must do so to survive. Killing animals for food makes us think of them as objects that we can use as we please. Their lives then count for little when weighed against our mere wants. As long as we continue to use animals in this way, to change our attitudes to animals in the way that they should be changed will be an impossible task. How can we encourage people to respect animals, and have equal concern for their interests, if they continue to eat them for their mere enjoyment? To foster the right attitudes of consideration for animals, including non–self-conscious ones, it may be best to make it a simple principle to avoid killing them for food.

6

TAKING LIFE: THE EMBRYO AND THE FETUS

THE PROBLEM

FEW ethical issues are as bitterly fought over today as abortion, and, while the pendulum has swung back and forth, neither side has had much success in altering the opinions of its opponents. Until 1967, abortion was illegal in almost all the Western democracies except Sweden and Denmark. Then Britain changed its law to allow abortion on broad social grounds, and in the 1973 case of *Roe* v *Wade*, the United States Supreme Court held that women have a constitutional right to an abortion in the first six months of pregnancy. Western European nations, including Roman Catholic countries like Italy, Spain and France, all liberalised their abortion laws. Only the Republic of Ireland held out against the trend.

Opponents of abortion did not give up. In the United States, conservative Presidents have changed the composition of the Supreme Court, which in turn has nibbled around the margins of the *Roe* v *Wade* decision, allowing states to restrict, in various ways, access to abortion. Outside the United States, the issue of abortion re-surfaced in Eastern Europe after the collapse of communism. The communist states had allowed abortion, but as nationalist and religious forces gathered strength, there were strong moves in countries like Poland for the re-introduction of restrictive laws. Since West Germany had more restrictive laws than East Germany, the need to introduce a single law for a united Germany also caused an intense debate.

In 1978 the birth of Louise Brown raised a new issue about

the status of early human life. For Louise Brown was the first human to have been born from an embryo that had been fertilised outside a human body. The success of Robert Edwards and Patrick Steptoe in demonstrating the possibility of in vitro fertilization, or IVF, was based on several years of experimentation on early human embryos – none of which had survived. IVF is now a routine procedure for certain types of infertility, and has given rise to thousands of healthy babies. To reach this point, however, many more embryos had to be destroyed in experiments, and further improvement of IVF techniques will require continued experimentation. Perhaps more significant still, for the long-term, are the possibilities for other forms of experimentation opened up by the existence of a viable embryo outside the human body. Embryos can now be frozen and stored for many years before being thawed and implanted in a woman. Normal children develop from these embryos, but the technique means that there are large numbers of embryos now preserved in special freezers around the world. (At the time of writing there were about 11,000 frozen embryos in Australia alone.) Because the IVF procedure often produces more embryos than can safely be transferred to the uterus of the woman from whom the egg came, many of these frozen embryos will never be wanted, and presumably will either be destroyed, be donated for research, or given to other infertile couples.

Other new technologies loom just a little way ahead. Embryos can be screened for genetic abnormalities, and then discarded if such abnormalities are found. Edwards has predicted that it will become scientifically feasible to grow embryos in vitro to the point at which, about 17 days after fertilisation, they develop blood stem cells, which could be used to treat various now-lethal blood diseases. Others, speculating about the further future, have asked if one day we will have banks of embryos or fetuses to provide organs for those who need them.

Abortion and destructive embryo experimentation pose difficult ethical issues because the development of the human being is a gradual process. If we take the fertilised egg immediately after conception, it is hard to get upset about its death. The fertilised egg is a single cell. After several days, it is still only a tiny cluster of cells without a single anatomical feature of the being it will later become. The cells that will eventually become the embryo proper are at this stage indistinguishable from the cells that will become the placenta and amniotic sac. Up to about 14 days after fertilisation, we cannot even tell if the embryo is going to be one or two individuals, because splitting can take place, leading to the formation of identical twins. At 14 days, the first anatomical feature, the so-called primitive streak, appears in the position in which the backbone will later develop. At this point the embryo could not possibly be conscious or feel pain. At the other extreme is the adult human being. To kill a human adult is murder, and, except in some special circumstances like those to be discussed in the next chapter, is unhesitatingly and universally condemned. Yet there is no obvious sharp line that divides the fertilised egg from the adult. Hence the problem.

Most of this chapter will be concerned with the problem of abortion, but the discussion of the status of the fetus will have obvious implications for two related issues: embryo experimentation, and the use of fetal tissue for medical purposes. I begin the discussion of abortion stating the position of those opposed to abortion, which I shall refer to as the conservative position. I shall then examine some of the standard liberal responses, and show why they are inadequate. Finally I shall use our earlier discussion of the value of life to approach the issue from a broader perspective. In contrast to the common opinion that the moral question about abortion is a dilemma with no solution, I shall show that, at least within the bounds of non-religious ethics, there is a clear-cut answer and those who take a different view are simply mistaken.

THE CONSERVATIVE POSITION

The central argument against abortion, put as a formal argument, would go something like this:

First premise: It is wrong to kill an innocent human being.
Second premise: A human fetus is an innocent human being.
Conclusion: Therefore it is wrong to kill a human fetus.

The usual liberal response is to deny the second premise of this argument. So it is on whether the fetus is a human being that the issue is joined, and the dispute about abortion is often taken to be a dispute about when a human life begins.

On this issue the conservative position is difficult to shake. The conservative points to the continuum between the fertilised egg and child, and challenges the liberal to point to any stage in this gradual process that marks a morally significant dividing line. Unless there is such a line, the conservative says, we must either upgrade the status of the earliest embryo to that of the child, or downgrade the status of the child to that of the embryo; but no one wants to allow children to be dispatched on the request of their parents, and so the only tenable position is to grant the fetus the protection we now grant the child.

Is it true that there is no morally significant dividing line between fertilised egg and child? Those commonly suggested are: birth, viability, quickening, and the onset of consciousness. Let us consider these in turn.

Birth

Birth is the most visible possible dividing line, and the one that would suit liberals best. It coincides to some extent with our sympathies – we are less disturbed at the destruction of a fetus we have never seen than at the death of a being we can all see, hear and cuddle. But is this enough to make birth the line that

decides whether a being may or may not be killed? The conservative can plausibly reply that the fetus/baby is the same entity, whether inside or outside the womb, with the same human features (whether we can see them or not) and the same degree of awareness and capacity for feeling pain. A prematurely born infant may well be *less* developed in these respects than a fetus nearing the end of its normal term. It seems peculiar to hold that we may not kill the premature infant, but may kill the more developed fetus. The location of a being – inside or outside the womb – should not make that much difference to the wrongness of killing it.

Viability

If birth does not mark a crucial moral distinction, should we push the line back to the time at which the fetus could survive outside the womb? This overcomes one objection to taking birth as the decisive point, for it treats the viable fetus on a par with the infant, born prematurely, at the same stage of development. Viability is where the United States Supreme Court drew the line in *Roe* v. *Wade*. The Court held that the state has a legitimate interest in protecting potential life, and this interest becomes 'compelling' at viability 'because the fetus then presumably has the capability of meaningful life outside the mother's womb'. Therefore statutes prohibiting abortion after viability would not, the Court said, be unconstitutional. But the judges who wrote the majority decision gave no indication why the mere capacity to exist outside the womb should make such a difference to the state's interest in protecting potential life. After all, if we talk, as the Court does, of *potential* human life, then the nonviable fetus is as much a potential adult human as the viable fetus. (I shall return to this issue of potentiality shortly; but it is a different issue from the conservative argument we are now discussing, which claims that the fetus is a human being, and not just a potential human being.)

There is another important objection to making viability the cut-off point. The point at which the fetus can survive outside the mother's body varies according to the state of medical technology. Thirty years ago it was generally accepted that a baby born more than two months premature could not survive. Now a six-month fetus – three months premature – can often be pulled through, thanks to sophisticated medical techniques, and fetuses born after as little as five and a half months of gestation have survived. This threatens to undermine the Supreme Court's neat division of pregnancy into trimesters, with the boundary of viability lying between the second and third trimesters.

In the light of these medical developments, do we say that a six-month-old fetus should not be aborted now, but could have been aborted without wrongdoing thirty years ago? The same comparison can also be made, not between the present and the past, but between different places. A six-month-old fetus might have a fair chance of survival if born in a city where the latest medical techniques are used, but no chance at all if born in a remote village in Chad or New Guinea. Suppose that for some reason a woman, six months pregnant, was to fly from New York to a New Guinea village and that, once she had arrived in the village, there was no way she could return quickly to a city with modern medical facilities. Are we to say that it would have been wrong for her to have an abortion before she left New York, but now that she is in the village she may go ahead? The trip does not change the nature of the fetus, so why should it remove its claim to life?

The liberal might reply that the fact that the fetus is totally dependent on the mother for its survival means that it has no right to life independent of her wishes. In other cases, however, we do not hold that total dependence on another person means that that person may decide whether one lives or dies. A newborn baby is totally dependent on its mother, if it happens to

be born in an isolated area in which there is no other lactating woman, nor the means for bottle feeding. An elderly woman may be totally dependent on her son looking after her, and a hiker who breaks her leg five days' walk from the nearest road may die if her companion does not bring help. We do not think that in these situations the mother may take the life of her baby, the son of his aged mother, or the hiker of her injured companion. So it is not plausible to suggest that the dependence of the nonviable fetus on its mother gives her the right to kill it; and if dependence does not justify making viability the dividing line, it is hard to see what does.

Quickening

If neither birth nor viability marks a morally significant distinction, there is less still to be said for a third candidate, quickening. Quickening is the time when the mother first feels the fetus move, and in traditional Catholic theology, this was thought to be the moment at which the fetus gained its soul. If we accepted that view, we might think quickening important, since the soul is, on the Christian view, what marks humans off from animals. But the idea that the soul enters the fetus at quickening is an outmoded piece of superstition, discarded now even by Catholic theologians. Putting aside these religious doctrines makes quickening insignificant. It is no more than the time when the fetus is first felt to move of its own accord; the fetus is alive before this moment, and ultrasound studies have shown that fetuses do in fact start moving as early as six weeks after fertilization, long before they can be felt to move. In any case, the capacity for physical motion – or the lack of it – has nothing to do with the seriousness of one's claim for continued life. We do not see the lack of such a capacity as negating the claims of paralysed people to go on living.

Consciousness

Movement might be thought to be indirectly of moral significance, in so far as it is an indication of some form of awareness – and as we have already seen, consciousness, and the capacity to feel pleasure or pain, are of real moral significance. Despite this, neither side in the abortion debate has made much mention of the development of consciousness in the fetus. Those opposed to abortion may show films about the 'silent scream' of the fetus when aborted, but the intention behind such films is merely to stir the emotions of the uncommitted. Opponents of abortion really want to uphold the right to life of the human being from conception, irrespective of whether it is conscious or not. For those in favour of abortion, to appeal to the absence of a capacity for consciousness has seemed a risky strategy. On the basis of the studies showing that movement takes place as early as six weeks after fertilization, coupled with other studies that have found some brain activity as early as the seventh week, it has been suggested that the fetus could be capable of feeling pain at this early stage of pregnancy. That possibility has made liberals very wary of appealing to the onset of consciousness as a point at which the fetus has a right to life. We shall return to the issue of consciousness in the fetus later in this chapter, because it is relevant to the issue of embryo and fetal experimentation. We will also then consider an earlier marker that could be relevant to embryo experimentation, but not to the abortion debate. As far as abortion is concerned, the discussion up to now has shown that the liberal search for a morally crucial dividing line between the newborn baby and the fetus has failed to yield any event or stage of development that can bear the weight of separating those with a right to life from those who lack such a right, in a way that clearly shows fetuses to be in the latter category at the stage of development when most abortions take place. The conservative is on solid ground in insisting

that the development from the embryo to the infant is a gradual process.

SOME LIBERAL ARGUMENTS

Some liberals do not challenge the conservative claim that the fetus is an innocent human being, but argue that abortion is nonetheless permissible. I shall consider three arguments for this view.

The Consequences of Restrictive Laws

The first argument is that laws prohibiting abortion do not stop abortions, but merely drive them underground. Women who want to have abortions are often desperate. They will go to backyard abortionists or try folk remedies. Abortion performed by a qualified medical practitioner is as safe as any medical operation, but attempts to procure abortions by unqualified people often result in serious medical complications and sometimes death. Thus the effect of prohibiting abortion is not so much to reduce the number of abortions performed as to increase the difficulties and dangers for women with unwanted pregnancies.

This argument has been influential in gaining support for more liberal abortion laws. It was accepted by the Canadian Royal Commission on the Status of Women, which concluded that: 'A law that has more bad effects than good ones is a bad law . . . As long as it exists in its present form thousands of women will break it.'

The main point to note about this argument is that it is an argument against laws prohibiting abortion, and not an argument against the view that abortion is wrong. This is an important distinction, often overlooked in the abortion debate. The present argument well illustrates the distinction, because one could quite consistently accept it and advocate that the law should allow abortion on request, while at the same time de-

ciding oneself – if one were pregnant – or counselling another who was pregnant, that it would be wrong to have an abortion. It is a mistake to assume that the law should always enforce morality. It may be that, as alleged in the case of abortion, attempts to enforce right conduct lead to consequences no one wants, and no decrease in wrong-doing; or it may be that, as is proposed by the next argument we shall consider, there is an area of private ethics with which the law ought not to interfere.

So this first argument is an argument about abortion law, not about the ethics of abortion. Even within those limits, however, it is open to challenge, for it fails to meet the conservative claim that abortion is the deliberate killing of an innocent human being, and in the same ethical category as murder. Those who take this view of abortion will not rest content with the assertion that restrictive abortion laws do no more than drive women to backyard abortionists. They will insist that this situation can be changed, and the law properly enforced. They may also suggest measures to make pregnancy easier to accept for those women who become pregnant against their wishes. This is a perfectly reasonable response, given the initial ethical judgment against abortion, and for this reason the first argument does not succeed in avoiding the ethical issue.

Not the Law's Business?

The second argument is again an argument about abortion laws rather than the ethics of abortion. It uses the view that, as the report of a British government committee inquiring into laws about homosexuality and prostitution put it: 'There must remain a realm of private morality and immorality that is, in brief and crude terms, not the law's business.' This view is widely accepted among liberal thinkers, and can be traced back to John Stuart Mill's *On Liberty*. The 'one very simple principle' of this work is, in Mill's words:

> That the only purpose for which power can be rightfully exercised over any member of a civilised community, against his will, is to prevent harm to others... He cannot rightfully be compelled to do or forbear because it will be better for him to do so, because it will make him happier, because in the opinions of others, to do so would be wise or even right.

Mill's view is often and properly quoted in support of the repeal of laws that create 'victimless crimes' – like laws prohibiting homosexual relations between consenting adults, the use of marijuana and other drugs, prostitution, gambling and so on. Abortion is often included in this list, for example by the criminologist Edwin Schur in his book *Crimes Without Victims*. Those who consider abortion a victimless crime say that, while everyone is entitled to hold and act on his or her own view about the morality of abortion, no section of the community should try to force others to adhere to its own particular view. In a pluralist society, we should tolerate others with different moral views and leave the decision to have an abortion up to the woman concerned.

The fallacy involved in numbering abortion among the victimless crimes should be obvious. The dispute about abortion is, largely, a dispute about whether or not abortion does have a 'victim'. Opponents of abortion maintain that the victim of abortion is the fetus. Those not opposed to abortion may deny that the fetus counts as a victim in any serious way. They might, for instance, say that a being cannot be a victim unless it has interests that are violated, and the fetus has no interests. But however this dispute may go, one cannot simply ignore it on the grounds that people should not attempt to force others to follow their own moral views. My view that what Hitler did to the Jews is wrong is a moral view, and if there were any prospect of a revival of Nazism I would certainly do my best to force others not to act contrary to this view. Mill's principle is defensible only if it is restricted, as Mill restricted it, to acts that do not harm others. To use the principle as a means of avoiding

the difficulties of resolving the ethical dispute over abortion is to take it for granted that abortion does not harm an 'other' – which is precisely the point that needs to be proven before we can legitimately apply the principle to the case of abortion.

A Feminist Argument

The last of the three arguments that seek to justify abortion without denying that the fetus is an innocent human being is that a woman has a right to choose what happens to her own body. This argument became prominent with the rise of the women's liberation movement and has been elaborated by American philosophers sympathetic to feminism. An influential argument has been presented by Judith Jarvis Thomson by means of an ingenious analogy. Imagine, she says, that you wake up one morning and find yourself in a hospital bed, somehow connected to an unconscious man in an adjacent bed. You are told that this man is a famous violinist with kidney disease. The only way he can survive is for his circulatory system to be plugged into the system of someone else with the same blood type, and you are the only person whose blood is suitable. So a society of music lovers kidnapped you, had the connecting operation performed, and there you are. Since you are now in a reputable hospital you could, if you choose, order a doctor to disconnect you from the violinist; but the violinist will then certainly die. On the other hand, if you remain connected for only (only?) nine months, the violinist will have recovered and you can be unplugged without endangering him.

Thomson believes that if you found yourself in this unexpected predicament you would not be morally required to allow the violinist to use your kidneys for nine months. It might be generous or kind of you to do so, but to say this is, Thomson claims, quite different from saying that you would be doing wrong if you did not do it.

Note that Thomson's conclusion does not depend on denying that the violinist is an innocent human being, with the same right to life as any other innocent human being. On the contrary, Thomson affirms that the violinist does have a right to life – but to have a right to life does not, she says, entail a right to the use of another's body, even if without that use one will die.

The parallel with pregnancy, especially pregnancy due to rape should be obvious. A woman pregnant through rape finds herself, through no choice of her own, linked to a fetus in much the same way as the person is linked to the violinist. True, a pregnant woman does not normally have to spend nine months in bed, but opponents of abortion would not regard this as a sufficient justification for abortion. Giving up a newborn baby for adoption might be more difficult, psychologically, than parting from the violinist at the end of his illness; but this in itself does not seem a sufficient reason for killing the fetus. Accepting for the sake of the argument that the fetus does count as a fully-fledged human being, having an abortion when the fetus is not viable has the same moral significance as unplugging oneself from the violinist. So if we agree with Thomson that it would not be wrong to unplug oneself from the violinist, we must also accept that, whatever the status of the fetus, abortion is not wrong – at least not when the pregnancy results from rape.

Thomson's argument can probably be extended beyond cases of rape. Suppose that you found yourself connected to the violinist, not because you were kidnapped by music lovers, but because you had intended to enter the hospital to visit a sick friend, and when you got into the elevator, you carelessly pressed the wrong button, and ended up in a section of the hospital normally visited only by those who have volunteered to be connected to patients who would not otherwise survive. A team of doctors, waiting for the next volunteer, assumed you were it, jabbed you with an anaesthetic, and connected you. If Thomson's argument was sound in the kidnap case it is probably sound here too, since nine months unwillingly sup-

porting another is a high price to pay for ignorance or carelessness. In this way the argument might apply beyond rape cases to the much larger number of women who become pregnant through ignorance, carelessness, or contraceptive failure.

But is the argument sound? The short answer is this: It is sound if the particular theory of rights that lies behind it is sound; and it is unsound if that theory of rights is unsound.

The theory of rights in question can be illustrated by another of Thomson's fanciful examples: suppose I am desperately ill and the only thing that can save my life is the touch of my favourite film star's cool hand on my fevered brow. Well, Thomson says, even though I have a right to life, this does not mean that I have a right to force the film star to come to me, or that he is under any moral obligation to fly over and save me – although it would be frightfully nice of him to do so. Thus Thomson does not accept that we are always obliged to take the best course of action, all things considered, or to do what has the best consequences. She accepts, instead, a system of rights and obligations that allows us to justify our actions independently of their consequences.

I shall say more about this conception of rights in Chapter 8. At this stage it is enough to notice that a utilitarian would reject this theory of rights, and would reject Thomson's judgment in the case of the violinist. The utilitarian would hold that, however outraged I may be at having been kidnapped, if the consequences of disconnecting myself from the violinist are, on balance, and taking into account the interests of everyone affected, worse than the consequences of remaining connected, I ought to remain connected. This does not necessarily mean that utilitarians would regard a woman who disconnected herself as wicked or deserving of blame. They might recognize that she has been placed in an extraordinarily difficult situation, one in which to do what is right involves a considerable sacrifice. They might even grant that most people in this situation would follow

self-interest rather than do the right thing. Nevertheless, they would hold that to disconnect oneself is wrong.

In rejecting Thomson's theory of rights, and with it her judgment in the case of the violinist, the utilitarian would also be rejecting her argument for abortion. Thomson claimed that her argument justified abortion even if we allowed the life of the fetus to count as heavily as the life of a normal person. The utilitarian would say that it would be wrong to refuse to sustain a person's life for nine months, if that was the only way the person could survive. Therefore if the life of the fetus is given the same weight as the life of a normal person, the utilitarian would say that it would be wrong to refuse to carry the fetus until it can survive outside the womb.

This concludes our discussion of the usual liberal replies to the conservative argument against abortion. We have seen that liberals have failed to establish a morally significant dividing line between the newborn baby and the fetus, and their arguments – with the possible exception of Thomson's argument if her theory of rights can be defended – also fail to justify abortion in ways that do not challenge the conservative claim that the fetus is an innocent human being. Nevertheless, it would be premature for conservatives to assume that their case against abortion is sound. It is now time to bring into this debate some more general conclusions about the value of life.

THE VALUE OF FETAL LIFE

Let us go back to the beginning. The central argument against abortion from which we started was:

First premise: It is wrong to kill an innocent human being.
Second premise: A human fetus is an innocent human being.
Conclusion: Therefore it is wrong to kill a human fetus.

The first set of replies we considered accepted the first premise of this argument but objected to the second. The second set of

replies rejected neither premise, but objected to drawing the conclusion from these premises (or objected to the further conclusion that abortion should be prohibited by law). None of the replies questioned the first premise of the argument. Given the widespread acceptance of the doctrine of the sanctity of human life, this is not surprising; but the discussion of this doctrine in the preceding chapters shows that this premise is less secure than many people think.

The weakness of the first premise of the conservative argument is that it relies on our acceptance of the special status of *human* life. We have seen that 'human' is a term that straddles two distinct notions: being a member of the species Homo sapiens, and being a person. Once the term is dissected in this way, the weakness of the conservative's first premise becomes apparent. If 'human' is taken as equivalent to 'person', the second premise of the argument, which asserts that the fetus is a human being, is clearly false; for one cannot plausibly argue that a fetus is either rational or self-conscious. If, on the other hand, 'human' is taken to mean no more than 'member of the species Homo sapiens', then the conservative defence of the life of the fetus is based on a characteristic lacking moral significance and so the first premise is false. The point should by now be familiar: whether a being is or is not a member of our species is, in itself no more relevant to the wrongness of killing it than whether it is or is not a member of our race. The belief that mere membership of our species, irrespective of other characteristics, makes a great difference to the wrongness of killing a being is a legacy of religious doctrines that even those opposed to abortion hesitate to bring into the debate.

Recognising this simple point transforms the abortion issue. We can now look at the fetus for what it is – the actual characteristics it possesses – and can value its life on the same scale as the lives of beings with similar characteristics who are not members of our species. It now becomes apparent that the 'Pro Life' or 'Right to Life' movement is misnamed. Far from having

concern for all life, or a scale of concern impartially based on the nature of the life in question, those who protest against abortion but dine regularly on the bodies of chickens, pigs and calves, show only a biased concern for the lives of members of our own species. For on any fair comparison of morally relevant characteristics, like rationality, self-consciousness, awareness, autonomy, pleasure and pain, and so on, the calf, the pig and the much derided chicken come out well ahead of the fetus at any stage of pregnancy – while if we make the comparison with a fetus of less than three months, a fish would show more signs of consciousness.

My suggestion, then, is that we accord the life of a fetus no greater value than the life of a nonhuman animal at a similar level of rationality, self-consciousness, awareness, capacity to feel, etc. Since no fetus is a person, no fetus has the same claim to life as a person. We have yet to consider at what point the fetus is likely to become capable of feeling pain. For now it will be enough to say that until that capacity exists, an abortion terminates an existence that is of no "intrinsic" value at all. Afterwards, when the fetus may be conscious, though not self-conscious, abortion should not be taken lightly (if a woman ever does take abortion lightly). But a woman's serious interests would normally override the rudimentary interests even of a conscious fetus. Indeed, even an abortion late in pregnancy for the most trivial reasons is hard to condemn unless we also condemn the slaughter of far more developed forms of life for the taste of their flesh.

The comparison between the fetus and other animals leads us to one more point. Where the balance of conflicting interests does make it necessary to kill a sentient creature, it is important that the killing be done as painlessly as possible. In the case of nonhuman animals the importance of humane killing is widely accepted; oddly, in the case of abortion little attention is paid to it. This is not because abortion is known to kill the fetus swiftly and humanely. Late abortions – which are the very ones

in which the fetus may be able to suffer – are sometimes performed by injecting a salt solution into the amniotic sac that surrounds the fetus. It has been claimed that the effect of this is to cause the fetus to have convulsions and die between one and three hours later. Afterwards the dead fetus is expelled from the womb. If there are grounds for thinking that a method of abortion causes the fetus to suffer, that method should be avoided.

THE FETUS AS POTENTIAL LIFE

One likely objection to the argument I have offered in the preceding section is that it takes into account only the actual characteristics of the fetus, and not its potential characteristics. On the basis of its actual characteristics, some opponents of abortion will admit, the fetus compares unfavourably with many non-human animals; it is when we consider its potential to become a mature human being that membership of the species Homo sapiens becomes important, and the fetus far surpasses any chicken, pig or calf.

Up to this point I have not raised the question of the potential of the fetus because I thought it best to concentrate on the central argument against abortion; but it is true that a different argument, based on the potential of the fetus, can be mounted. Now is the time to look at this other argument. We can state it as follows:

First premise: It is wrong to kill a potential human being.
Second premise: A human fetus is a potential human being.
Conclusion: Therefore it is wrong to kill a human fetus.

The second premise of this argument is stronger than the second premise of the preceding argument. Whereas it is problematic whether a fetus actually *is* a human being – it depends on what we mean by the term – it cannot be denied that the

fetus is a potential human being. This is true whether by 'human being' we mean 'member of the species Homo sapiens' or a rational and self-conscious being, a person. The strong second premise of the new argument is, however, purchased at the cost of a weaker first premise, for the wrongness of killing a potential human being – even a potential person – is more open to challenge than the wrongness of killing an actual human being.

It is of course true that the potential rationality, self-consciousness and so on of a fetal Homo sapiens surpasses that of a cow or pig; but it does not follow that the fetus has a stronger claim to life. There is no rule that says that a potential X has the same value as an X, or has all the rights of an X. There are many examples that show just the contrary. To pull out a sprouting acorn is not the same as cutting down a venerable oak. To drop a live chicken into a pot of boiling water would be much worse than doing the same to an egg. Prince Charles is a potential King of England, but he does not now have the rights of a king.

In the absence of any general inference from 'A is a potential X' to 'A has the rights of an X', we should not accept that a potential person should have the rights of a person, unless we can be given some specific reason why this should hold in this particular case. But what could that reason be? This question becomes especially pertinent if we recall the grounds on which, in the previous chapter, it was suggested that the life of a person merits greater protection than the life of a being who is not a person. These reasons – from the indirect classical utilitarian concern with not arousing in others the fear that they may be the next killed, the weight given by the preference utilitarian to a person's desires, Tooley's link between a right to life and the capacity to see oneself as a continuing mental subject, and the principle of respect for autonomy – are all based on the fact that persons see themselves as distinct entities with a past and future. They do not apply to those who are not now and never

have been capable of seeing themselves in this way. If these are the grounds for not killing persons, the mere potential for becoming a person does not count against killing.

It might be said that this reply misunderstands the relevance of the potential of the human fetus, and that this potential is important, not because it creates in the fetus a right or claim to life, but because anyone who kills a human fetus deprives the world of a future rational and self-conscious being. If rational and self-conscious beings are intrinsically valuable, to kill a human fetus is to deprive the world of something intrinsically valuable, and so wrong. The chief problem with this as an argument against abortion – apart from the difficulty of establishing that rational and self-conscious beings are of intrinsic value – is that it does not stand up as a reason for objecting to all abortions, or even to abortions carried out merely because the pregnancy is inconveniently timed. Moreover the argument leads us to condemn practices other than abortion that most anti-abortionists accept.

The claim that rational and self-conscious beings are intrinsically valuable is not a reason for objecting to all abortions because not all abortions deprive the world of a rational and self-conscious being. Suppose a woman has been planning to join a mountain-climbing expedition in June, and in January she learns that she is two months pregnant. She has no children at present, and firmly intends to have a child within a year or two. The pregnancy is unwanted only because it is inconveniently timed. Opponents of abortion would presumably think an abortion in these circumstances particularly outrageous, for neither the life nor the health of the mother is at stake – only the enjoyment she gets from climbing mountains. Yet if abortion is wrong only because it deprives the world of a future person, this abortion is not wrong; it does no more than delay the entry of a person into the world.

On the other hand this argument against abortion does lead us to condemn practices that reduce the future human population: contraception, whether by 'artificial' means or by 'natural' means such as abstinence on days when the woman is likely to be fertile; and also celibacy. This argument has, in fact, all the difficulties of the 'total' form of utilitarianism, discussed in the previous two chapters, and it does not provide any reason for thinking abortion worse than any other means of population control. If the world is already overpopulated, the argument provides no reason at all against abortion.

Is there any other significance in the fact that the fetus is a potential person? If there is I have no idea what it could be. In writings against abortion we often find reference to the fact that each human fetus is unique. Paul Ramsey, a former Professor of Religion at Princeton University, has said that modern genetics, by teaching us that the first fusion of sperm and ovum creates a 'never-to-be-repeated' informational speck, seems to lead us to the conclusion that 'all destruction of fetal life should be classified as murder'. But why should this fact lead us to this conclusion? A canine fetus is also, no doubt, genetically unique. Does this mean that it is as wrong to abort a dog as a human? When identical twins are conceived, the genetic information is repeated. Would Ramsey therefore think it permissible to abort one of a pair of identical twins? The children that my wife and I would produce if we did not use contraceptives would be genetically unique. Does the fact that it is still indeterminate precisely what genetically unique character those children would have make the use of contraceptives less evil than abortion? Why should it? And if it does could the looming prospect of successful cloning – a technique in which the cells of one individual are used to reproduce a fetus that is a genetic carbon copy of the original – diminish the seriousness of abortion? Suppose the woman who wants to go mountain climbing were able to have her abortion, take a cell from the aborted fetus and then reimplant that cell in her womb so that an exact genetic replica of the aborted fetus would develop – the only difference being that the pregnancy would now come to term six months

later, and thus she could still join the expedition. Would that make the abortion acceptable? I doubt that many opponents of abortion would think so.